

Supreme Court, U.S.
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IN THE
Supreme Court of the United States
OCTOBER TERM, 1994

ASTON A. BEADLE,

Petitioner,

v.

CITY OF TAMPA, FLORIDA, a Florida municipal corporation,
and THE CITY OF TAMPA, FLORIDA, POLICE DEPARTMENT,

Respondents.

On Petition For A Writ Of Certiorari
To The United States Court Of Appeals
For The Eleventh Circuit

PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED

1. Does the court of appeals decision conflict with the holding in *Brown v. General Motors Corp.*, 601 F.2d 956 (8th Cir. 1979), and the teaching of this Court in *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63 (1977), that an employer can be relieved of its obligation to reasonably accommodate an employee's religious practices only if the available accommodations involve more than *de minimis* tangible costs, such as payment of premium wages or a demonstrable loss of efficiency?

2. Does the court of appeals decision reflect a serious trend by lower courts to erroneously lower the "undue hardship" standard to Title VII's religious accommodation requirement so employers need do nothing when asked for such an accommodation, a trend only this Court can reverse?

3. Does the court of appeals decision commit manifest error in creating, by judicial fiat, an exemption from the religious accommodation requirement of Title VII for municipal law enforcement agencies?

PARTIES TO THE PROCEEDINGS

Petitioner: Aston A. Beadle

Respondents: City of Tampa, Florida, a municipal corporation, and The City of Tampa, Florida, Police Department.

There are no parent companies or subsidiaries. Petitioner makes this declaration pursuant to Supreme Court Rule 29.

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ASTON A. BEADLE,

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CITY OF TAMPA, FLORIDA, a Florida municipal
corporation, and THE CITY OF TAMPA, FLORIDA,
POLICE DEPARTMENT,

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**On Petition For A Writ Of Certiorari
To The United States Court Of Appeals For The
Eleventh Circuit**

PETITION FOR WRIT OF CERTIORARI

Aston A. Beadle petitions for a writ of certiorari to review the judgment of the Court of Appeals for the Eleventh Circuit. The opinion and judgment of the court of appeals was entered on January 18, 1995.

OPINIONS BELOW

The opinion of the Court of Appeals for the Eleventh

Circuit is reported at 42 F.3d (11th Cir. 1995), and appears in the Appendix at 1a-10a, *infra*.

The memorandum opinion of the United States District Court for the Middle District of Florida, Tampa Division, entered on October 1, 1994, is unreported and in the Appendix at 11a-28a, *infra*.

JURISDICTION

Invoking federal jurisdiction under Title VII of the Civil Rights Act of 1964 (as amended by the Equal Employment Opportunity Act of 1972, 42 U.S.C. § 2000e *et seq.*) and 28 U.S.C. § 1331 (general federal question jurisdiction), petitioner brought this suit in the United States District Court for the Middle District of Florida, Tampa Division. On October 4, 1993, the district court entered judgment on the merits in favor of the defendants. (*See App. at 29a, infra.*)

On January 18, 1995, in response to petitioner's appeal, the Eleventh Circuit entered a judgment and order affirming the district court's judgment. (*See App. at 1a-10a, infra.*)

The jurisdiction of this Court to review the judgment of the Eleventh Circuit is invoked under 28 U.S.C. § 1254(1).

STATUTORY PROVISIONS INVOLVED

42 U.S.C. § 2000e(j) provides:

The term "religion" includes all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he is unable to reasonably accommodate to an employee's or prospective employee's religious observance or

practice without undue hardship on the conduct of the employer's business.

42 U.S.C. § 2000e-2(a) provides:

It shall be an unlawful employment practice for an employer -

(1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or

(2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex, or national origin.

42 U.S.C. § 2000e-2(h) provides in pertinent part:

Notwithstanding any other provision of this subchapter, it shall not be an unlawful employment practice for an employer to apply different standards of compensation, or different terms, conditions, or privileges of employment pursuant to a bona fide seniority or merit system . . . provided that such differences are not the result of an intention to discriminate because of race, color, religion, sex, or national origin. . . .

STATEMENT OF THE CASE

A. Relevant Facts

1. Background

Aston Beadle is a member of the Seventh-day Adventist Church. A tenet of that faith forbids secular labor during its Sabbath (from sundown Friday to sundown Saturday). Adventists refrain from routine work during the Sabbath, although they may engage in emergency or humanitarian work (App. at 2a).

Born and raised in Jamaica, Beadle worked as a policeman in that country for two years before coming to the United States. Choosing law enforcement as his life's work, Beadle served a brief time with the Hillsborough (Florida) County Sheriff's Office but because he could not work on his Sabbath lost his job (App. at 12a).¹ Beadle then sought other law enforcement positions.

2. The Department's Refusal to Accommodate

¹Beadle's action against the Hillsborough County Sheriff's office was tried by the same Magistrate Judge, Charles R. Wilson, as heard this case. There the magistrate judge held for the Sheriff's office, using the same analysis as employed here and concluding the neutral rotating shift system utilized by the Sheriff's Department constituted a reasonable accommodation. A Petition for Writ of Certiorari in that case was docketed in this Court on March 31, 1995, as *Aston A. Beadle v. Hillsborough County Sheriff's Dep't, et al.*, No. 94-1610. Because both the *Hillsborough County Sheriff's Department* case and this case employed similar analyses, the cases should be consolidated for oral argument.

On January 26, 1987, Beadle successfully completed the Tampa police officer's civil service examination. In an interview, he informed the Department he was a Seventh-day Adventist and could not work on his Sabbath. The Department informed Beadle it was "not required to make any special allowance for him." (App. at 2a; PX 9 at 1). Captain Walker of the Department's Personnel Bureau, on April 28, told Beadle that he would not be accommodated and would not be hired unless willing to work at the time and day scheduled (PX 11 at 1; Walker Dep. R2-64-41:3-14). As a result of Beadle's Sabbath accommodation request, Walker recommended he not be hired (App. at 13a).

Consequently, the Police Chief asked the City Attorney for a legal opinion on the Department's obligation to accommodate Beadle (Walker Dep. R2-64-24:23-27:11). On January 4, 1988, the opinion concluded the Department was not required to provide an accommodation for Beadle's religious beliefs (App. at 13a).

On February 4 during his final interview, the Department told Beadle he would not be recommended for hire because he refused to work during his Sabbath (R4-47:4-49:1; 95:7-96:5). Nevertheless, early the following week, the Department asked Beadle if he was still interested in attending the police academy. Beadle indicated he was and received instructions to report for employment preliminaries (R4-50:21-52:4).

Beadle reported for orientation on February 19, 1988. In June he successfully completed the course of study at the Tampa Police Academy. Although the Department was aware of Beadle's religious accommodation needs, it nonetheless "randomly assigned" him to Sergeant Cook's training squad, a position which had Tuesdays, Wednesdays, and Thursdays off. Sergeant Dawson's training squad, to which Beadle could

have been assigned, had Thursdays, Fridays, and Saturdays off (Cook Dep. R2-66-118:7-19; R4-199:12-25). Because of the assignment to Cook's training squad, Beadle was scheduled to work on his Sabbath (App. at 14a).

During his first week of field training, Beadle requested Saturday off and was permitted to be absent without pay. But the Police Chief informed Beadle further requests would not be granted (R2-60:7-13; 214:1-12; App. at 15a).

The following week the Department denied Beadle's request for Saturday off. He then requested a transfer to another squad, but the Department denied this request, explaining if Beadle's request for a specific day off was granted, the Department would have to grant other similar requests (App. at 15a).

At a meeting on January 21 or 22, the Police Chief demanded Beadle "work [his] shift." Under protest, Beadle resigned (App. at 15a).

3. Feasible No-Cost Means of Accommodation

Recruits in field training worked four 10-hour days, followed by three consecutive days off. The shift rotated forward one day each week every 56 days (App. at 3a). All concede if Beadle had been assigned to Sergeant Dawson's squad, initially he would have had Saturdays off. Recruits usually spent the first six weeks and the last two weeks with one field training officer while rotating to one or more other field training supervisors with different schedules for the interim 8-week period. Consequently, had Beadle rotated with the other members of his squad without an accommodation, he eventually would have been assigned to work some Saturdays (App. at 15a, 26a).

Sergeant Cook indicated trainees were assigned to a regular squad rather than being placed in a training squad. Under this arrangement, two field training officers were assigned per squad throughout the district. This program was no different from what would have occurred had Beadle been assigned to Sergeant Dawson's squad for two 56-day cycles, alternating between two training officers (Cook Dep. R2-66-43:13-44:10; 125:18-126:17). The Department unfortunately refused this scheduling device to accommodate Beadle.

According to Sergeant Cook, such a training program was not detrimental to the recruit or to the Department (Cook Dep. R2-66-127:15-128:16). Although the training would have been essentially the same, it was not used to accommodate Beadle because it "was not the policy at the time." (Cook Dep. R2-66-129:12-20). Colonel Fox conceded Beadle could have been accommodated throughout his training by being assigned to Sergeant Dawson's squad but explained: "That's just the way we did business." (R4-200:2-201:4).

The trial court found "a possible permanent accommodation [after completion of field training] would have been to permit Beadle to work at what was known as the 'downtown squad.'" (App. at 18a-27a). The court also noted another possible permanent accommodation would have been an assignment as a background investigator. Both were traditionally Monday through Friday positions (App. at 18a).

B. The EEOC Determination

On March 30, 1990, the Equal Employment Opportunity Commission (App. at 31a) determined the Department's treatment of Beadle violated Title VII of the Civil Rights Act of 1964 (*id.*):

The evidence substantiates that because of the alleged discriminatory treatment, Charging Party's working conditions became sufficiently intolerable that a reasonable person in Charging Party's position would have resigned.

(*Id.*).

C. The Trial Court's Decision

The trial court found Beadle established a prima facie case of religious discrimination under Title VII (App. at 23a). As to Beadle's 16-week field training program, the court said:

1. "Beadle was not assigned to the training squad that had the weekend days off, even though it was known that he was a Seventh-day Adventist who did not wish to work on Saturdays." (App. at 14a);
2. "Had Beadle been assigned to Sergeant Dawson's squad instead of Sergeant Cook's, he would have his days off on Thursday, Friday, and Saturday during the first 56-day cycle." (App. at 15a);
3. "[N]o reason was given [by the Department] for Beadle's assignment to Sergeant Cook's rather than Sergeant Dawson's squad other than it was a random assignment and no accommodation would be made for Beadle." (App. at 15a);
4. "[O]ther than granting him his first Saturday off of his training period, the City made absolutely no accommodations whatsoever to Beadle's religious needs other than the benefits of its neutral rotating shift system." (App. at 26a); and
5. The Police Department refused to accommodate Beadle

because if Beadle's "request for a specific day off was granted, the Department would then have to concern itself with accommodating similar requests made by others." (App. at 15a).

The court did not disagree that after his 16-week field training Beadle could have been permanently accommodated since "other positions were available in the City of Tampa Police Department, such as what is known as the 'downtown squad', assignment . . . which would accommodate his religious beliefs." (App. at 27a).

Like its decision in *Beadle v. Hillsborough County Sheriff's Dep't*, the court found "the city met its obligation under Title VII when it offered the neutral shift rotating system as a reasonable accommodation to Beadle." (App. at 28a).

The trial court interpreted *Hardison* "to provide that Title VII does not require a law enforcement agency of the nature of the City of Tampa Police Department to grant its law enforcement officer a permanent weekly religious accommodation to the exclusion of his or her fellow officers." (App. at 27a). It reached this decision despite specifically finding it was "unable to conclude that the accommodation of a transfer of Beadle to another training shift would have deprived another police trainee of the benefits of the neutral scheduling system." (App. at 27a). The court explained:

[T]he Court concludes that requiring the Department to grant shift exceptions to Beadle would be to incur a greater than *de minimis* cost because of the public health, safety and welfare considerations associated with police work.

(App. at 27a).

D. The Court of Appeals Decision

The Eleventh Circuit noted that "[r]elying on *Beadle v. Hillsborough County Sheriff's Dep't*, 29 F.3d 589 (11th Cir. 1994), the city and Department argue that a neutral rotating shift system is necessarily a reasonable accommodation." (App. at 8a). The court distinguished this case from *Hillsborough* where voluntary swaps were permitted. But the Tampa Police Department made no such allowance (App. at 8a).

The court of appeals observed: "Aside from granting Beadle his first Saturday off from work, the magistrate found that the Department did nothing to accommodate Beadle other than the neutral rotating shift system." (App. at 8a). But the court promptly discarded the trial court's "reasonable accommodation" conclusion while affirming its "undue hardship" conclusion (App. at 8a):

We conclude that the magistrate court did not err when it found that requiring the Department to grant shift exceptions would result in a greater than *de minimis* cost and that the City had met its obligation under Title VII.

(App. at 10a). The Eleventh Circuit acknowledged that 42 U.S.C. § 2000e(j) provides "[t]he employer violates [Title VII] unless it 'demonstrates that [it] is unable to reasonably accommodate . . . an employee's . . . religious observance or practice without undue hardship on the conduct of the employer's business.'" (App. at 6a-7a) (citing *Ansonia Bd. of Educ. v. Philbrook*, 479 U.S. 60, 68 (1986)).

Two related points flow from the Eleventh Circuit's conclusion. First, it mistakenly expands the *Hardison* "de

minimis" costs standard to include "not only monetary concerns, but also the employer's burden in conducting its business." (App. at 7a). Second, it further expands "*de minimis*" to include "health, safety, and welfare of its citizenry" (App. at 9a) despite a record silent concerning such facts; and a *Hardison* decision which focused on tangible costs to the employer.

REASONS FOR GRANTING THE WRIT

INTRODUCTION

The Eleventh Circuit's decision lowers the standard an employer must meet in satisfying its accommodation duty. In so doing, the court ignores congressional language and intent. The decision also misinterprets this Court's holding in *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63 (1977); and directly conflicts with the Eighth Circuit Court of Appeals' decision in *Brown v. General Motors Corp.*, 601 F.2d 956 (8th Cir. 1979). The Eleventh Circuit's decision (and its earlier decision in *Beadle v. Hillsborough County Sheriff's Dep't*, 29 F.3d 589 (11th Cir. 1994), employing nearly identical reasoning) negates Title VII's religious accommodation requirement. The court shrinks the meaning of "undue hardship" to "more than *de minimis* burden" and then makes a *per se* finding, without reference to the language of Title VII, that law enforcement agencies cannot accommodate without exceeding such a minimal burden.

The Eleventh Circuit decisions reflect a serious and growing trend by lower courts to expand the "undue hardship" exception to Title VII's religious accommodation requirement in such a manner that employers, as here, need do nothing when confronted by an employee's request for an accommodation. These decisions also illustrate how

governmental agencies, relying on counsel's interpretation of the case law, can ignore their accommodation requirements. A grave risk exists that the Eleventh Circuit's twin opinions will be interpreted by other courts and employers to say law enforcement agencies and others are exempt from Title VII's religious accommodation requirements.

Moreover, this Petition asks whether *Hardison's de minimis* cost holding should be clarified due to its misapplication by lower courts and in light of evolving Establishment Clause jurisprudence. For example, *Estate of Thornton v. Caldor, Inc.*, 472 U.S. 703, 710 (1985), suggests the Establishment Clause permits a workplace accommodation unless it "would cause the employer *substantial* economic burdens or when the employer's compliance would require the imposition of *significant* burdens on other employees required to work in place of the Sabbath observers." (Emphasis supplied).

I. THE COURT OF APPEALS ERRONEOUSLY LOWERED THE STATUTORY "UNDUE HARDSHIP" STANDARD APPLIED IN TITLE VII RELIGIOUS ACCOMMODATION CASES.

The decision below replaces Congress' "reasonable accommodation without undue hardship" standard with a judicially fashioned "more than *de minimis* burden" standard, thus gutting the religious accommodation requirement of Title VII. This act of judicial activism is antithetical to Congress' intent and directly opposes EEOC's interpretation of the statute.

In 1972 Congress, without opposition, amended Title VII of the Civil Rights Act of 1964 providing in section 701(j) (42 U.S.C. § 2000e(j)):

The term "religion" includes all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he is unable to reasonably accommodate to an employee's or prospective employee's religious observance or practice *without undue hardship on the conduct of the employer's business*. [Emphasis supplied.]

Referring to the above statutory provision, this Court in *Hardison*, 432 U.S. at 74, stated "[t]he intent and effect of this definition was to make it an unlawful employment practice under § 703(a)(1) for an employer not to make reasonable accommodations, short of undue hardship, for the religious practices of his employees and prospective employees."

In determining whether accommodation suggested by the court of appeals would result in undue hardship, this Court rejected an arrangement permitting Hardison to work a four day workweek to avoid working on his Sabbath. The court of appeals "[r]ecognizing that this might have left TWA shorthanded on the one shift each week that Hardison did not work . . . concluded that TWA would suffer no undue hardship if it were required to replace Hardison either with supervisory personnel or with qualified personnel from other departments." 432 U.S. at 84. As an alternative, "the Court of Appeals suggested that TWA could have replaced Hardison on his Saturday shift with other available employees through the payment of premium wages." *Id.* But this Court found that "[b]oth of these alternatives would involve *costs* to TWA, either in the form of lost efficiency in other jobs or higher wages." *Id.* (emphasis supplied).

This Court concluded "[t]o require TWA to bear more than a *de minimis* cost in order to give Hardison Saturdays off is an undue hardship." *Id.* In reaching this conclusion, this Court

explained:

Like abandonment of the seniority system, to require TWA to bear additional costs when no such costs are incurred to give other employees the days off that they want would involve unequal treatment of employees on the basis of their religion. By suggesting that TWA should incur certain costs in order to give Hardison Saturdays off the Court of Appeals would in effect require TWA to finance an additional Saturday off and then to choose the employee who will enjoy it on the basis of his religious beliefs. While incurring extra costs to secure a replacement for Hardison might remove the necessity of compelling another employee to work involuntarily in Hardison's place, it would not change the fact that the privilege of having Saturdays off would be allocated according to religious beliefs.

Id. at 84-85.

The Eleventh Circuit's holding which equates "undue hardship" with only a theoretical and speculative more than *de minimis* burden is like being in an "Alice-in-Wonderland world where words have no meaning." *Cummins v. Parker Seal Co.*, 516 F.2d 544, 550 (6th Cir. 1975) (quoting *Welsh v. United States*, 398 U.S. 333, 354 (1970) (Harlan, J., concurring)). In concluding "the phrase '*de minimis* cost' entails not only monetary concerns, but also the employer's burden in conducting its business (App. at 7a), the Eleventh Circuit clashes directly with the Eighth Circuit in *Brown v. General Motors Corp.*, 601 F.2d 956, 960 (8th Cir. 1979). It also conflicts with the Third, Sixth, and Seventh Circuits' undue hardship analyses in *Protos v. Volkswagen of America*,

Inc., 797 F.2d 129, 133 (3d Cir. 1986); *McDaniel v. Essex International*, 696 F.2d 34, 37, 38 (6th Cir. 1982);² and *Redmond v. GAF Corp.*, 574 F.2d 897, 903-04 (7th Cir. 1978), that limit "more than *de minimis* cost" findings to tangible direct and indirect financial costs. Ironically, the Eleventh Circuit's decision backs away from its earlier decision in *Wisner v. Truck Central*, 784 F.2d 1571, 1573 (11th Cir. 1986), which concluded that *Hardison* "held that to require the employer to bear costs (in a financial sense) that were more than *de minimis* was undue hardship."³

This case is the most disturbing example of how the reasonably high "undue hardship" standard has been emasculated. But it is only the culmination of a trend toward replacing the statutory standard with a much lower "more than *de minimis* burden" standard through judicial erosion. This has been accomplished by courts equating the phrase "more than *de minimis* burden" with the term "undue hardship." This progressive movement may be traced from such decisions as *Howard v. Haverty Furniture Co.*, 615 F.2d 203, 206 (5th Cir. 1980); *Bhata v. Chevron U.S.A., Inc.*, 734 F.2d 1382,

²In *Smith v. Pyro Mining Co.*, 827 F.2d 1081, 1085 (6th cir. 1987) (quoting *Draper v. United States Pipe & Foundry Co.*, 527 F.2d 515, 520 (6th Cir. 1975), the court rejected the Eleventh Circuit's finding that the employer sustains its burden of proof "merely by showing that an accommodation would be . . . disruptive of the operating routine."

³The Eleventh Circuit again referred to economic costs in *Lake v. B.F. Goodrich Co.*, 837 F.2d 449, 452 (11th Cir. 1988), when it spoke of *Hardison* as "disapproving of requiring an employer to finance additional days off for employees with certain religious beliefs," citing *Wisner*, 784 F.2d at 1574.

1384 (1984); *Benefield v. Food Giant, Inc.*, 630 F. Supp. 78, 79 (M.D. Ga. 1985), *aff'd*, 792 F.2d 1125 (11th Cir. 1986); *Moore v. A.E. Staley Mfg. Co.*, 727 F. Supp. 1156, 1162 (N.D. Ill. 1989); *Ackerman v. National R.R. Passenger Corp. AMTRAK*, 772 F. Supp. 579, 582 (S.D. Fla. 1990); *Ryan v. United States Dep't of Justice*, 950 F.2d 458, 461, 462 (7th Cir. 1991); through *Blair v. Graham Correctional Center*, 782 F. Supp. 411, 414, 415 (C.D. Ill. 1992), *aff'd*, 4 F.3d 965 (7th Cir. 1993).

The *Hardison* Court announced that Title VII's religious accommodation provision does not impose a duty on employers to incur more than *de minimis* cost "either in the form of lost efficiency in other jobs or higher wages." 432 U.S. at 84. This is because "[t]o require . . . [an employer] to bear more than a *de minimis* cost in order to give . . . [an employee] Saturdays off is an undue hardship." *Id.* Unlike the Eleventh Circuit, this Court did not say a more than *de minimis* burden on an employer's business or a more than *de minimis* impact on a coworker constitutes an undue hardship.

The Eleventh Circuit's decision is also contrary to the EEOC's understanding of the statute. In interpreting the "undue hardship" component of section 701(j) in the context of this Court's holding in *Hardison*, the EEOC stated:

In general, the Commission interprets this phrase as it was used in the *Hardison* decision to mean that cost similar to the regular payment of premium wages of substitutes, which was at issue in *Hardison*, would constitute undue hardship. However, the Commission will presume that the infrequent payment of premium wages for a substitute or the payment of premium wages while a more permanent accommodation is being sought

are costs which an employer can be required to bear as a means of providing a reasonable accommodation.

29 C.F.R. § 1605.2(e)(1) (App. at 38a).

As indicated, the Eleventh Circuit's decision conflicts and clashes with several other federal courts. In *Brown v. General Motors Corp.*, 601 F.2d 956 (8th Cir. 1979), the employer argued against an accommodation where the employee would leave work every Friday at sunset and General Motors would use its existing substitute pool which it normally employed to replace regular employees' unscheduled absences. *Id.* at 959. The district court found there were sufficient numbers of qualified workers available without additional cost in wages or overtime. *Id.* Although General Motors argued that accommodating Brown would "theoretically" require General Motors to hire an additional full-time employee by citing evidence of previously increased absenteeism on Fridays, the court held that such "'theoretical' future effects cannot outweigh the undisputed fact that *no monetary costs and de minimus efficiency problems were actually incurred* during the three month period in which Brown was accommodated." *Id.* at 960 (emphasis supplied).⁴

In *Protos v. Volkswagen of America, Inc.*, 797 F.2d 129, 135 (3d Cir. 1986), the Third Circuit stated: "[u]nlike the accommodation proposed in *Hardison*, the employer here was

⁴The *Brown* analysis has subsequently been relied upon in other cases. See *Murphy v. Edge Memorial Hosp.*, 550 F. Supp. 1185, 1192 (M.D. Ala. 1982); *Ka Nam Kuan v. City of Chicago*, 563 F. Supp. 255, 259 n.3 (N.D. Ill. 1983); and *Cook v. Chrysler Corp.*, 981 F.2d 336 (8th Cir. 1992).

not obliged to pay higher wages in order to fill Protos's vacancy. The district court articulated the correct legal standard, as set forth in *Hardison*." The court also stated:

The principal issue before the district court was the degree of hardship that accommodating Protos's request for Saturdays off would have imposed on Volkswagen. Finding that "defendant suffered no economic loss" because of Protos's absence, and that the "efficiency, production, quality and morale" of her segment of the Trim Department and the entire assembly line remained intact without her, the district court ruled that Volkswagen could have accommodated her "without undue hardship and at no cost."

Id. at 132.

In *Redmond v. GAF Corp.*, 574 F.2d 897, 903-04 (7th Cir. 1978), the court concluded that an employer's discharge of a religious observer constituted religious discrimination. In reaching this conclusion, the court found that an accommodation would not have resulted in regular overtime and there was no proof of lost efficiency through the use of a replacement.

The court in *McDaniel v. Essex Int'l, Inc.*, 696 F.2d 34, 37 (6th Cir. 1982), rejected an undue hardship claim. It observed in accommodating McDaniel's religious beliefs proscribing payment of union dues, a charity substitute accommodation would not require the "expenditures for overtime or additional wages."

The judicial perception that the "undue hardship" exception should be diluted no doubt results from *Hardison's* "de

minimis" cost language which arose from an unarticulated attempt to save Title VII's religious accommodation provision from the perils of the Establishment Clause.⁵ But, to the extent an accommodation does not require expending extra money or does not result in substantial imposition on coworkers, no Establishment Clause problem exists. Two post-*Hardison* decisions illustrate this point well.

In *Estate of Thornton v. Caldor, Inc.*, 472 U.S. 703, 709-10 (1985), this Court struck down, as violative of the Establishment Clause, Connecticut's absolute and unqualified statutory exemption for Sabbath observance. This Court noted

⁵Several courts have concluded that this Court's "more than *de minimis* cost" standard resulted from Establishment Clause concerns rather than from a dictionary understanding of the term "undue hardship" or the product of divining the legislative intent behind section 701(j) of Title VII. In *Gibson v. Missouri Pac. R.R.*, 620 F. Supp. 85, 88-89 (E.D. Ark. 1985), the court observed:

A private employer is not required under 42 U.S.C. § 2000e *et seq.* to rearrange schedules to accommodate an employee's religious observance of Sabbath in violation of seniority and overtime provisions of a collective bargaining agreement or incur greater than *de minimis* cost, as either would constitute "undue hardship." To require employers to do so would therefore violate the establishment clause under the First Amendment of the United States Constitution.

See also *Meadows v. Golden Grain Macaroni Co.*, 45 Fair Empl. Prac. Cas. (BNA) 235, 241 (N.D. Ill. 1987).

"there is no exception when honoring the dictates of Sabbath observers would *cause the employer substantial economic burdens* or when the employer's compliance would require *the imposition of significant burdens on other employees* required to work in the place of the Sabbath observers." (Emphasis supplied).

Observing that not all benefits conferred exclusively "upon individuals on account of their religious beliefs are forbidden by the Establishment Clause," this Court in *Texas Monthly, Inc. v. Bullock*, 489 U.S. 1, 18 n.8 (1989), declared accommodation provided by legislative act that "did not, or would not, impose *substantial burdens* on nonbeneficiaries while allowing others to act according to their religious beliefs . . ." was acceptable under the Establishment Clause. This is precisely what section 701(j) of Title VII demands. Although Title VII "rides a fine line between the desire to eradicate religious discrimination, and the Establishment Clause's preclusion against the favoring of religious beliefs over other nonreligious beliefs, [i]t succeeds insofar as it does not result in undue hardship to the employer. . . ." *Hudson v. Western Airlines, Inc.*, 851 F.2d 261, 265 (9th Cir. 1988).

Professor Michael McConnell addressed the constitutional dimension of accommodation in the workplace in *Accommodation of Religion: An Update and a Response to the Critics*, 60 Geo. Wash. L. Rev. 685, 704 n.76 (March, 1992). He observed, "as an interpretation of the [Title VII] statute, . . . the decision [in *Hardison*] is almost certainly wrong." According to Professor McConnell, although this "Court did not explicitly refer to the Establishment Clause as a basis for its interpretation," *id.*, its holding was "probably out of concern that a more burdensome accommodation requirement would violate the Establishment Clause." *Id.* at 704.

The records and briefs before the Court in *Hardison* suggest, at its core, it was an Establishment Clause case. (See Brief of Appellant at 21-46 and Brief of Respondent at 23-29.) Nine amici curiae briefs addressed the Establishment Clause question, and the Court itself referenced the issue, 432 U.S. at 69-70 and n.4.

It is one thing for the Court to hold, as it did in *Hardison*, that an employer incurs an undue hardship if it must bear more than a *de minimis* cost in terms of lost efficiency or the payment of premium wages. But it is quite another if the Court meant, as the courts below seem to contend, that an employer has no further accommodation duty if alternative means of accommodation result in a mere *de minimis* burden on the employer's business.

Professor McConnell explained the *de minimis* cost standard:

This cannot be the constitutional test; most accommodations that have been recognized as legitimate impose more than a *de minimis* burden on others. Moreover, when legislatures adjust the benefits and burdens of economic life among the citizens, they regularly impose more than a *de minimis* burden for the purpose of protecting important interests of the beneficiary class.

McConnell, *Accommodation of Religion: An Update and a Response to the Critics*, 60 Geo. Wash. L. Rev. at 704.

By lowering the "undue hardship" standard to simply "more than *de minimis* burden," the Court negates the duty to accommodate. The Ninth Circuit illustrates this reality by asserting: "A standard less difficult to satisfy than the 'de

minimus' standard for demonstrating undue hardship expressed in *Hardison* is difficult to imagine." *Yott v. North American Rockwell Corp.*, 602 F.2d 904, 909 (9th Cir. 1979), *cert. denied*, 445 U.S. 928 (1980).

Justice Scalia noted in *Edwards v. Aguillard*, 482 U.S. 578, 618 (1987), that while the Court has "warned that at some point, accommodation may devolve into 'an unlawful fostering of religion' [citation omitted] . . . [the Court has] not suggested precisely (or even roughly) where that point might be." Guidance from this Court is now needed if the Establishment Clause did in fact give birth to the mangled interpretation of the term "undue hardship" appearing in section 701(j) of Title VII.

Constitutionally, a religious accommodation may be required so long as available accommodations would not cause the employer substantial economic burden or impose significant burdens on other employees. In the instant case, there were neither substantial economic burdens placed on the Police Department's operations nor were there significant impositions placed on coworkers. Absent such a showing, the Eleventh Circuit's decision is clearly erroneous.

II. THE COURT OF APPEALS COMMITTED MANIFEST ERROR IN CREATING, BY JUDICIAL FIAT, AN EXEMPTION FROM TITLE VII'S RELIGIOUS ACCOMMODATION REQUIREMENT FOR MUNICIPAL LAW ENFORCEMENT AGENCIES.

Concluding the Police Department need only show more than a *de minimis* burden, rather than *Hardison's* "more than *de minimis* costs," the trial court determined that "requiring the Department to grant shift exceptions to Beadle would be to incur a greater than *de minimis* cost because of the public

health, safety and welfare considerations associated with police work." (App. at 27a-28a). The court did not rely on any evidence of adverse public health, safety, or welfare consequences but simply made a per se determination that law enforcement positions are exempt from Title VII accommodation requirements. The court "interpret[ed] *Trans World Airlines, Inc. v. Hardison* to provide that Title VII does not require a law enforcement agency of the nature of the City of Tampa Police Department to grant its law enforcement officer a permanent weekly religious accommodation to the exclusion of his or her fellow officers." (App. at 27a). But the courts below ignored the fact that *Hardison* rejected such a per se conclusion. As noted in *EEOC v. Ithaca Industries, Inc.*, 849 F.2d 116, 119 (4th Cir. 1988):

The Supreme Court in *Hardison* held that the employer, TWA, could not reasonably accommodate the employee's refusal to work on his Sabbath without undue hardship. TWA, however, made several efforts to accommodate the employee. Job swaps, change of days off, and shift transfers were all attempted before TWA concluded that any further accommodation would create an undue hardship.

Only after it reviewed the *extent* of the accommodation efforts made by TWA did the *Hardison* Court conclude that the cost to the employer was more than *de minimis*. *Hardison* found the accommodation suggested by the court of appeals -- the substitution of "other available employees through the payment of premium wages," 432 U.S. at 84 -- would result in more than *de minimis* cost. The Court then concluded "[t]o require TWA to bear more than a *de minimis* cost in order to give *Hardison* Saturdays off is an undue hardship." *Id.*

The Eleventh Circuit, like the trial court, concluded an employer is not required to search for an accommodation, noting that "the Department is charged with protecting the health, safety, and welfare of its citizenry." (App. at 9a). However, such a blanket exemption for law enforcement agencies is hostile to the language and purpose of Title VII and is unsupported by case law. The text of Title VII does not exempt law enforcement or public health and safety agencies. To the contrary, in 1972 Congress extended Title VII to cover state and local government "employers" when it added 701(j) to the statute. See 118 Cong. Rec. 7166 (Section by Section Analysis of H.R. 1746) (noting definition of "employer" "would now include all State and local governments, governmental agencies and political subdivisions").

Section 701(j)'s religious accommodation provision clearly requires all "employers" short of undue hardship, to make scheduling adjustments for Sabbatarian employees. Contrary to the trial court's assumption and the court of appeals' determination, these amendments extend Title VII coverage to governmental agencies, including police departments. These public employers are bound by the same standard as private employers.

The Eleventh Circuit relies on *United States v. City of Albuquerque*, 545 F.2d 110, 114 (10th Cir. 1976), cert. denied, 433 U.S. 909 (1977). However, that case is distinguishable from this case. There the Tenth Circuit rejected a per se finding of undue hardship and instead found "[e]ach case necessarily depends upon its own facts and circumstances." In contrast to the Eleventh Circuit's decision here, although the *City of Albuquerque* court recognized that a fire department is involved in serious public life-saving and property protection, it nevertheless applied the same undue

hardship standard required for private employers. Thus, the nature of the defendants' business is merely one of the factors courts will consider in evaluating reasonable accommodation and undue hardship, yet using the same standard for both.

Here a reasonable accommodation for Beadle was possible. Department personnel admitted it would not have been detrimental to Beadle's training nor adversely affect the training program for Beadle to remain on Sergeant Dawson's squad the full 16 weeks instead of transferring to another training officer. That is the exact way the training program operated at the time discovery was taken in this case (Cook Dep. R2-66-43:22-44:10; 126:18-129:20).

Another accommodation alternative was equally feasible. There were field training officers ("FTOs") in each of the non-training squads. Beadle could have been placed in a non-training squad and assigned to an FTO qualified person in any sector of the City for any additional training required by the Department (*id.* at 123:14-125:9). And there were non-training squads to which Beadle could have been assigned that would not have required him to work his Sabbath (*id.* at 117:7-119:7; *see also* DX 20). Because all training officers received special pay while in the training program, it would not have increased training costs.

One additional means of accommodation would have been to extend Beadle's training for a short time to allow for any training deficiencies. This could have been accomplished in any sector of the City. The Department extended training for some recruits when the recruit exhibited such a need. The Department would use a different training officer, which did not cause a consistency problem (Pegram Dep. R2-62-81:3-82:12). Because extended training was offered for periods of four to eight weeks for other recruits (Cook Dep. R2-66-45:9-

47:25), any extra cost incurred in providing Beadle extended training would not be the type of financial cost referred to in *Hardison* because it would not confer a privilege not provided to other recruits for non-religious reasons.

In *Tooley v. Martin-Marietta Corp.*, 648 F.2d 1239, 1243 (9th Cir. 1981), *cert. denied*, 454 U.S. 1098 (1981), the court stated "[a] claim of undue hardship cannot be supported by merely conceivable or hypothetical hardships; instead, it must be supported by proof of 'actual imposition on co-workers or disruption of the work routine.'" (Citation omitted.) (*See also Smith v. Pyro Mining Co.*, 827 F.2d 1081, 1086 (6th cir. 1987).) But here the court made no finding of actual imposition on coworkers or disruption of the work routine. In fact, the court of appeals found directly to the contrary (App. at 27a).

The court in *Toledo v. Nobel-Sysco, Inc.*, 892 F.2d 1481, 1492 (10th Cir. 1989) (citing *Tooley*, 648 F.2d at 1243), stated "[t]he *magnitude* as well as the *fact* of hardship must be determined by examination of the facts of each case." But the courts below made no such assessment. Beadle does concede, as the court stated in *Claybaugh v. Pacific Northwest Bell Tel. Co.*, 355 F. Supp. 1, 6 (D. Ore. 1973), that "[a]s the degree of business hardship increases, the quantity of conduct which will satisfy the reasonable accommodation requirement decreases." However, that does not excuse the courts' failure to apply the statute's "reasonable accommodation/undue hardship" standard. Nor does it eliminate the need for the trial court to quantify the extent of the claimed resulting hardship.

It is not enough for the trial court to find that granting shift exceptions or changing from a random assignment of recruits would result in some type of generalized minimal "cost" to the

public health, safety, and welfare. Rather, at a minimum, the court should have considered the Department's evidence of hardship, including the particular requirements of the job in question and the impact on the law enforcement agency. The court then should have made specific findings crediting or rejecting that evidence as it related to the specific accommodations Beadle proposed.

CONCLUSION

For the foregoing reasons, petitioner respectfully requests this petition be granted and a writ of certiorari issue to review the judgment and opinion of the Court of Appeals for the Eleventh Circuit.

Dated: April 17, 1995

Respectfully submitted,

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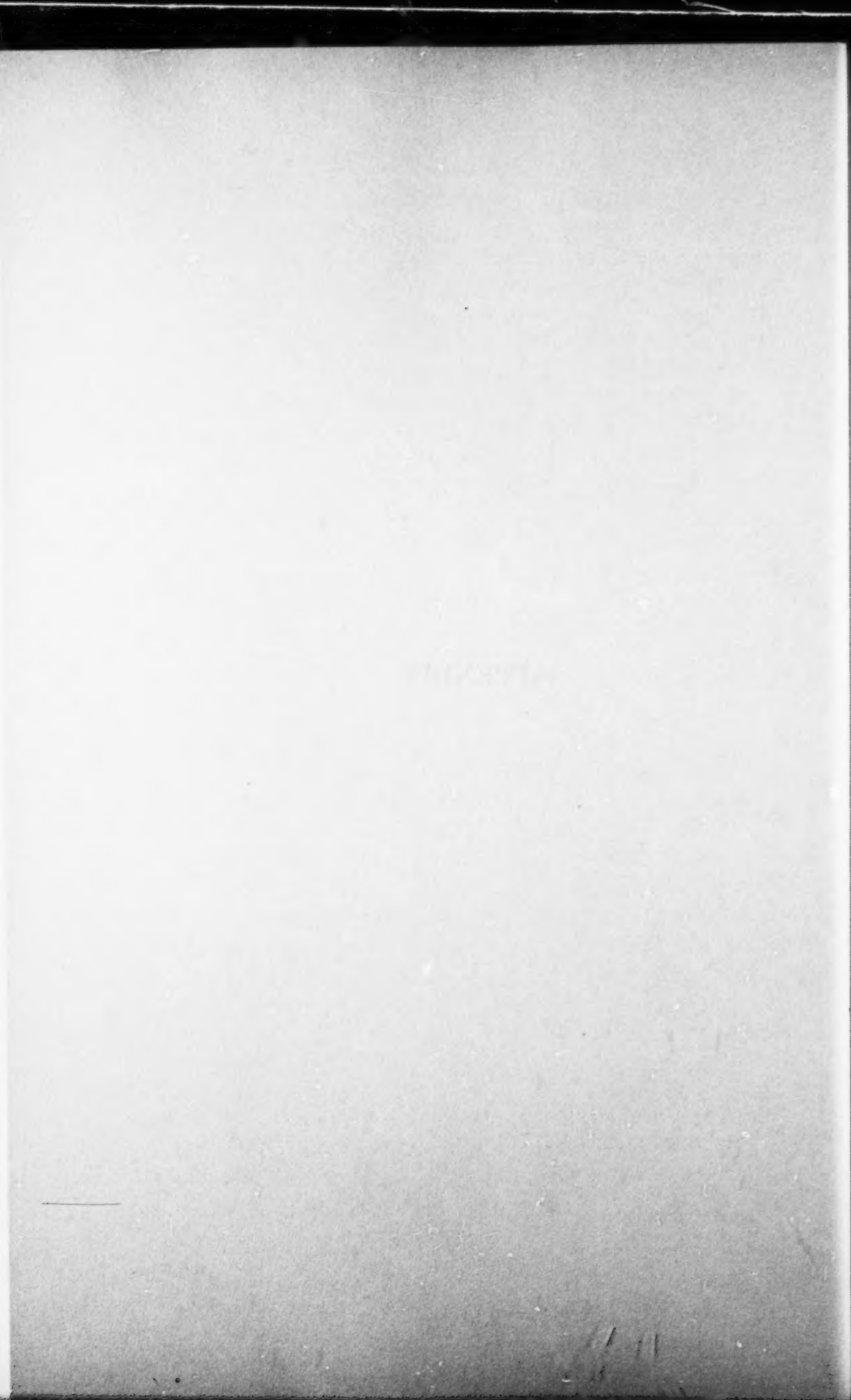
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APPENDIX



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APPENDIX A

**UNITED STATES COURT OF APPEALS,
ELEVENTH CIRCUIT**

No. 93-3271.

ASTON A. BEADLE,
Plaintiff-Appellant, Cross-Appellee,

v.

**CITY OF TAMPA, a Florida municipal corporation;
and the Tampa Police Department,
Defendants-Appellees, Cross-Appellants.**

**Appeals from the United States District Court
for the Middle District of Florida.**

Jan. 18, 1995.

Former police officer sued city and police department for religious discrimination. The United States District Court for the Middle District of Florida, No. 91-1316-CIV-T-17(A), Elizabeth A. Kovachevich, J., after bench trial, held that city met its obligations under Title VII. Former officer appealed. The Court of Appeals, Floyd R. Gibson, Senior Circuit Judge, sitting by designation, held that: (1) magistrate court's finding that officer did not knowingly and voluntarily waive his Title VII rights was not clearly erroneous, and (2) requiring department to grant excep-

tions to officer would have resulted in greater than de minimus cost.

Affirmed.

Before KRAVITCH and DUBINA, Circuit Judges, and GIBSON *, Senior Circuit Judge.

FLOYD R. GIBSON, Senior Circuit Judge:

Aston Beadle appeals the magistrate court's ¹ final judgment in favor of the City of Tampa and Tampa Police Department. The court rejected Beadle's claim that the Department violated Title VII by failing to accommodate his religious practices and by constructively discharging him because of his refusal to work on his Sabbath. The City and Department cross-appeal the court's finding that Beadle did not knowingly and voluntarily sign a release waiving his Title VII rights. We AFFIRM.

I. BACKGROUND

At all times relevant to this lawsuit, Beadle was a practicing member of the Seventh Day Adventist Church. One of the tenets of this faith is the prohibition of secular labor on its Sabbath—from sundown Friday until sundown Saturday. Beadle passed the City of Tampa's civil service examination, and the Tampa Police Department accepted his employment application. Although aware of his religious practices and the resulting limitations on his work schedule,² the Department made no promises to Beadle that he would not be required to work on his Sabbath.

* Honorable Floyd R. Gibson, Senior U.S. Judge for the Eighth Circuit, sitting by designation.

¹ The parties consented to trial by the magistrate judge.

² When he was hired, the Department was also aware that Beadle had a religious discrimination claim pending against his prior employer, the Hillsborough County Sheriff's Office.

Beadle successfully completed the Tampa Police Academy and began the Department's field training program. The sixteen weeks of field training consisted of four phases: a two-week orientation period in which a recruit patrolled a particular area of the city with a field training officer; a four-week period graded by the initial training officer; two four-week periods in which a recruit was assigned to other training squads with different field training officers; and a two-week period and evaluation with the recruit's original field training officer. The Department assigned recruits to several different training officers during the course of their training so that the recruits could experience varying methods of supervision and observe other patrol areas in the city.

At the time of Beadle's field training assignment, all of the Department's patrol squads, including the training squads, were scheduled to work for four ten-hour days followed by three days off. Every eight weeks, the shift schedules rotated forward one day. The Department did not allow recruits to use vacation or leave time during their first six months of employment and did not allow any of its employees to trade days off.

Beadle was randomly assigned to a training squad that worked Friday through Monday, with Tuesday, Wednesday, and Thursday as his days off. During his first week of field training, Beadle requested the upcoming Saturday off from work in order to observe his Sabbath. Although the Department granted this request, Beadle's supervisor explained to him that future time off may not be possible. The following week, the Department denied Beadle's request for Saturday off. Beadle met with his supervisors and advised them that he would be forced to resign from the Department if he was required to work on his Sabbath. Beadle's supervisors informed him that he must work his assigned shift and that he would not be transferred to another training squad. Beadle then tendered his resignation.

During orientation, Beadle had signed a contract that provided if he left the Department and secured

employment with another law enforcement agency within two years "from commencement of full-time service as a police officer subsequent to completion of the period of field training," he was obligated to reimburse the City for his hiring and training expenses (approximately \$12,000.00). When Beadle submitted his resignation letter, one of his supervisors provided him with a document where in Beadle agreed not to sue the City or the Department for any matters related to his former employment in exchange for the City's promise not to pursue reimbursement for his hiring and training expenses. Beadle reviewed this document for less than thirty minutes and signed it without consulting an attorney.

Beadle then brought this lawsuit against the City and Department, alleging that he was constructively discharged because the defendants failed to reasonably accommodate his religious practices. Beadle claimed that the Department could have assigned him to a field training officer who worked Sunday through Wednesday and had Thursday, Friday, and Saturday off. If he had stayed with this training officer and had not switched during the third phase of training, then he would have been able to observe his Sabbath during the entire sixteen-week training program. Once he had completed his field training, Beadle claimed that the Department could have assigned him to a position with the "downtown squad"—a group of officers who worked only Monday through Friday. The City and Department argued that Beadle had waived his Title VII rights by signing the release, and that in any event, its use of a neutral rotating shift schedule was a reasonable accommodation of Beadle's religious practices. Alternatively, the defendants argued that accommodating Beadle would have created an undue hardship.

After a four-day bench trial, the magistrate found that Beadle did not knowingly and voluntarily waive his Title

VII rights. The magistrate then determined that requiring the Department to grant shift exceptions would result in a greater than *de minimis* cost because of the public health, safety, and welfare considerations associated with police work and that the Department's use of a neutral rotating shift system was a reasonable effort to accommodate Beadle under Title VII. "[E]valuat[ing] reasonable accommodation and undue hardship in light of the employment context of each case, the Court is unable to find any authority which would require a public health or safety agency to grant such an employee an exception from the customary neutral rotating shift system used by law enforcement agencies in order to accommodate the Sabbath requirements of the officer." *Beadle v. City of Tampa*, No. 91-1316, slip op. at 20 (M.D.Fla. Oct. 1, 1993) (unpublished). The magistrate concluded that the City had met its obligation under Title VII and entered judgment in favor of the defendants.⁸ Beadle appeals, and the City and Department cross-appeal.

II. DISCUSSION

A. Release and Waiver

As a preliminary matter, we address the issue of whether Beadle has waived his Title VII rights. An employee may validly waive his Title VII rights in a private settlement with his employer if he knowingly and voluntarily consents to the release. *Alexander v. Gardner-Denver Co.*, 415 U.S. 36, 52 n. 15, 94 S.Ct. 1011, 1022 n. 15, 39 L.Ed.2d 147 (1974). In determining whether a release was knowingly and voluntarily en-

⁸ Beadle's discrimination lawsuits against the Hillsborough County Sheriff's Department and the Tampa Police Department were tried *ad seriatim*. The court also entered judgment in favor Hillsborough, and this Court affirmed in *Beadle v. Hillsborough County Sheriff's Dep't*, 29 F.3d 589 (11th Cir.1994).

tered, the factors that guide a court include: the plaintiff's education and business experience; the amount of time the plaintiff considered the agreement before signing it; the clarity of the agreement; the plaintiff's opportunity to consult with an attorney; the employer's encouragement or discouragement of consultation with an attorney; and the consideration given in exchange for the waiver when compared with the benefits to which the employee was already entitled. *Gormin v. Brown-Forman Corp.*, 963 F.2d 323, 327 (11th Cir.1992) (citing *Bormann v. AT & T Communications, Inc.*, 875 F.2d 399, 403 (2d Cir.), *cert. denied*, 493 U.S. 924, 110 S.Ct. 292, 107 L.Ed.2d 272 (1989)).

In this case, the magistrate noted that Beadle spent a short amount of time reviewing the document and that he did not consult with an attorney. Although the Department did not discourage Beadle from consulting with an attorney, given Beadle's stressful financial situation, the magistrate was unconvinced that he had a fair opportunity to do so. Moreover, the contract for reimbursement created a financial obligation when a recruit secured other law enforcement employment within two years after completing field training and commencing full-time service. Because Beadle had never completed his field training and started full-time service, he was arguably never indebted to the City for his hiring and training expenses. After examining the record, we cannot conclude that the magistrate court clearly erred in finding that Beadle did not knowingly and voluntarily sign the release waiving his Title VII rights.

B. Reasonable Accommodation and Undue Hardship

Title VII of the Civil Rights Act of 1964, as amended, prohibits an employer from discriminating against an employee on the basis of "race, color, religion, sex, or nation origin." 42 U.S.C. § 2000e-2(a)(1). The statute defines the term "religion" to include "all aspects of religious observance and practice, as well as belief." 42 U.S.C. § 2000e(j). "The employer violates the statute

unless it 'demonstrates that [it] is unable to reasonably accommodate . . . an employee's . . . religious observance or practice without undue hardship on the conduct of the employer's business.'" *Ansonia Bd. of Educ. v. Philbrook*, 479 U.S. 60, 68, 107 S.Ct. 367, 372, 93 L.Ed.2d 305 (1986) (quoting 42 U.S.C. 2000e(j)).

Recognizing that the phrases "reasonable accommodation" and "undue hardship" are not defined under the statutes, "[e]ach case necessarily depends upon its own facts and circumstances, and in a sense every case boils down to a determination as to whether the employer has acted reasonably." *United States v. City of Albuquerque*, 545 F.2d 110, 114 (10th Cir.1976), *cert. denied*, 433 U.S. 909, 97 S.Ct. 2974, 53 L.Ed.2d 1092 (1977). Once an employer demonstrates that it reasonably accommodated an employee's religious needs, the statutory inquiry ends. *Ansonia*, 479 U.S. at 68, 107 S.Ct. at 371-72. "[T]he extent of undue hardship on the employer's business is at issue only where the employer claims that it is unable to offer any reasonable accommodation without such hardship." *Id.* at 68-69, 107 S.Ct. at 372. The Supreme Court has described "undue hardship" as any act requiring an employer to bear more than a "*de minimis* cost" in accommodating an employee's religious beliefs. *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 84 n. 15, 97 S.Ct. 2264, 2277 n. 15, 53 L.Ed.2d 113 (1977). The Court has also recognized that the phrase "*de minimis* cost" entails not only monetary concerns, but also the employer's burden in conducting its business. *Id.*

On appeal, the parties concentrate their arguments on whether the Department's neutral rotating shift system was a reasonable accommodation.⁴ We believe, how-

⁴ The City and the Department do not dispute the court's finding that Beadle established a *prima facie* case of religious discrimination: (1) that he had a bona fide belief that compliance with an employment requirement would be contrary to his religious belief or practice; (2) that he informed his employer about the conflict; and (3)

ever, that the parties have unduly focused their arguments on the system itself and ignored the magistrate's determination that requiring the Department to grant shift exceptions to Beadle would result in a greater than *de minimis* cost in light of the public health, safety and welfare considerations associated with police work.

Relying on *Beadle v. Hillsborough County Sheriff's Dep't*, 29 F.3d 589 (11th Cir.1994), the City and Department argue that a neutral rotating shift system is necessarily a reasonable accommodation. However, in addition to a neutral rotating shift system, the Hillsborough County Sheriff's Department allowed its employees to trade days off.⁵ In *Hillsborough*, this Court concluded that "voluntary swaps instituted by employers within neutral rotating shift systems constitute reasonable accommodations under Title VII." *Id.* at 593.

Aside from granting Beadle his first Saturday off from work, the magistrate found that the Department did nothing to accommodate Beadle other than the neutral rotating shift system. The magistrate also noted that Title VII does not require an employer to assure that an employee has the opportunity to observe his religious practices at all costs. We believe that the magistrate's decision was correctly founded on its analysis of undue hardship, rather than on reasonable accommodation.

Our reading of the magistrate's judgment finds support in the fact that the court heavily relied on *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 97 S.Ct. 2264, 53 L.Ed.2d 113 (1977), a case involving undue hardship. See *Ansonia*, 479 U.S. at 68-69, 107 S.Ct. at 371-72 ("As *Hardison* illustrates, the extent of undue hardship on

that he was discharged or penalized for failing to comply with the conflicting employment requirement. See *Beadle v. Hillsborough County Sheriff's Dep't*, 29 F.3d 589 (11th Cir.1994).

⁵ In the case at hand, the issue of whether employees were allowed to trade days off is a red herring; recruits were not considered part of the regular work assignment and were not replaced when absent.

the employer's business is at issue only where the employer claims that it is unable to offer any reasonable accommodation without such hardship."). In *Hardison*, the Supreme Court explained:

[i]t was essential to [the employer]'s business to require Saturday and Sunday work from at least a few employees even though [sic] most employees preferred these days off. . . . In considering criteria to govern this allocation, [the employer] had two alternatives: *adopt a neutral system*, such as seniority, a lottery, or *rotating shifts*; or allocate days off in accordance with the religious needs of its employees. [The employer] would have had to adopt the latter in order to insure [plaintiff] and others like him of getting the days off necessary for strict observance of their religion, but it could have done so only at the expense of others who had strong, but perhaps nonreligious, reasons for not working on weekends. . . .

Title VII does not contemplate such unequal treatment. . . . It would be anomalous to conclude that by 'reasonable accommodation' Congress meant that an employer must deny the shift and job preference of some employees . . . in order to accommodate or prefer the religious needs of others, and we conclude that Title VII does not require an employer to go that far.

432 U.S. at 80-81, 97 S.Ct. at 2275 (emphasis added).

The Tampa Police Department is a twenty-four hour a day, seven-day a week, three hundred sixty-five day a year agency that must allocate work schedules among over nine hundred employees. More importantly, the Department is charged with protecting the health, safety, and welfare of its citizenry. The Department chose to implement a rotating shift schedule, randomly assign recruits to shifts, and expose its recruits to a variety of

training officers. In order to accommodate Beadle's religious practices, the Department would have been forced to assign him to another training squad and to not reassign him during the third phase of training. Beadle admits that he would not have experienced the educational benefits of working with different training officers, but argues that this phase of the training was not very important.⁶

We agree with the magistrate court's refusal to interfere with the Department's scheduling and training programs. When the employer's business involves the protection of lives and property, "courts should go slow in restructuring [its] employment practices." *Albuquerque*, 545 F.2d at 114. We conclude that the magistrate court did not err when it found that requiring the Department to grant shift exceptions would result in a greater than *de minimis* cost and that the City had met its obligation under Title VII.

III. CONCLUSION

Accordingly, we AFFIRM the magistrate court's judgment.

⁶ The fact that the Department later changed its field training program and eliminated this part of the training process is irrelevant.

APPENDIX B

**UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
TAMPA DIVISION**

Case No. 91-1316-Civ-T-17(A)

ASTON A. BEADLE,

Plaintiff,

-vs-

**CITY OF TAMPA, FLORIDA, a Florida municipal
corporation, THE CITY OF TAMPA, FLORIDA,
POLICE DEPARTMENT,**

Defendants.

OPINION

This is an action brought pursuant to Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e, et. seq. (Title VII) involving the extent of an employer's obligation to accommodate the religious beliefs of its employee. The case was tried to the Court on June 25-28, 1993.

The Court is of the opinion that judgment should be entered in favor of the defendant based upon the following findings of fact and conclusions of law.

FINDINGS OF FACT

The plaintiff, Aston A. Beadle, is a member of the Seventh-Day Adventist faith. One of the tenets of the faith is the prohibition of work on the Sabbath, which

commences at sundown on Friday and ends at sundown on Saturday. Seventh-Day Adventists refrain from routine work on the Sabbath, although a Seventh-Day Adventist may engage in emergency or humanitarian work on that day. Beadle, after successfully completing the City of Tampa Police Academy resigned as a police officer trainee on Friday, June 24, 1988 when he was advised that the City would not grant him the next day, the Sabbath, off. Beadle contends that the order to work or resign resulted in his constructive discharge in violation of Title VII because the City failed to make a reasonable accommodation of his faith's tenets. The City contends that it made efforts to reasonably accommodate Beadle's religious beliefs.

The Department employs over 900 individuals, 713 of which are sworn personnel. Its patrol law enforcement operations are conducted through its two "uniformed districts or divisions".

On January 26, 1987, Beadle took and passed the City's civil service examination to be a police officer. He was then subjected to the standard background investigation conducted by the Personnel Bureau. At the time, the manager of the Personnel Bureau was Captain Joseph Walker. Three investigators participated in Beadle's background investigation including: Sergeant Polly Goethe (now Horne), Officer Carl Anderson and Detective Stephen Brock.

Law enforcement was Beadle's life work. He was originally born in Jamaica and served in the Jamaican Police Department for two years prior to coming to the United States. He also served a brief stint with the Hillsborough County Sheriff's Department. In fact, at the time that he was hired by the City, Beadle had charges pending against the Hillsborough County Sheriff's Office as a result of his discharge for failing to work on the Sabbath. The pendency of this claim was known by the City during its investigation of Beadle's application.

Beadle advised Detective Anderson during consideration of his application of his need to have the Sabbath off. No promises were made, but Detective Anderson advised that accommodations were possible.

Beadle's application was brought to the attention of the Chief of Police, A. C. McLain, who directed the City's legal counsel to render a legal opinion as to whether the City was required to hire Beadle. Based on a legal opinion of Assistant City Attorney Ernest Mayor, Jr., an offer of employment was extended to Beadle. The opinion stated:

In my opinion, Mr. Beadle should not be treated any differently from any other police applicant. He should be advised that like any other police officer, he will be expected to work on his assigned shifts. The Department should make it clear to Beadle that it is not in any way promising any type of accommodation of his religious beliefs. Mr. Beadle should be made to understand that he will be treated in the same manner as any other police recruit or probationary officer, i.e., he will not be entitled to use any leave during his probationary status.

Against the recommendation of Sergeant Goethe and Captain Walker, Beadle was hired. He completed the Academy, reported for orientation and began field training. Beadle believed that the City would make efforts to accommodate his religious beliefs by allowing him the Sabbath off. Included among the forms Beadle was required to sign at orientation was a document entitled "Binding Contract for Reimbursement of Hiring and Training Expenses". This contract provided, among other things, that in the event Beadle, after having received the benefit of the City's training, should secure employment with another law enforcement agency within two years after his termination of employment with the City, he would be obligated to reimburse the City for the

expenses of his training, which was approximately \$12,000.00.

The Academy lasted sixteen weeks. Then the Academy graduates were randomly assigned by the Personnel Bureau to the Patrol Division's training squads. Beadle was assigned to Uniform Division II which was commanded by Major E. F. Pegram. He was assigned to a training squad commanded by Sergeant Douglas Cook. The assignment of a police recruit to a training squad was, according to Sergeant Cook, made on a random basis. At the time of Beadle's assignment, all of the City's patrol squads, including the training squads, were scheduled to work four, ten-hour days with three-days off. The days for such squads rotated forward one day every 56 days.

The particular training squad that Beadle was assigned to had Tuesdays, Wednesdays and Thursdays off. Beadle was not assigned to the training squad that had the weekend days off, even though it was known that he was a Seventh-Day Adventist who did not wish to work on Saturdays.

The Field Training Program consisted of four phases for a total of sixteen weeks. The first phase consisted of a two-week orientation period within which the recruit would not be graded but was merely to ride with a field training officer in order to acquaint him with certain types of calls in the area of patrol. The next portion consisted of a four-week training period within which the recruit would be graded by his or her field training officer. During this initial six-week period, the recruit was assigned to his initial training squad, and in Beadle's case, the first six weeks would have been spent on Sergeant Cook's squad. The next two training phases consist of two four-week periods in which the recruit is assigned to a "sister" training squad and to a different field training officer. According to the City, the value of the change during this "swap" is to allow the recruit to

see different methods of supervision and different methods of training from different officers. The City also contends that this method of training allows the officer to patrol different areas of the City. During the final two-week phase of the program, the recruit returns to his or her original squad and to his or her original field training officer to complete the evaluation and field training.

Had Beadle been assigned to Sergeant's Dawson's squad instead of Sergeant Cook's, he would have his days off on Thursday, Friday and Saturday during the first 56-day cycle. No reason was given for Beadle's assignment to Sergeant Cook's rather than Sergeant Dawson's squad other than it was a random assignment and no accommodations would be made for Beadle.

During his first week of field training, Beadle asked for the upcoming Saturday off for the observance of his Sabbath. His request was granted by Major Pegram on June 17, 1988, albeit without a promise for such accommodations in the future. Beadle made the same request the next week and after a series of meetings with the City's command including Captain Walker, Colonel George Fox, Deputy Chief Curtis Lane, Chief McLain and Major Pegram, the request was denied.

Upon denial of this request, Beadle met with Major Pegram to advise him that he wished to resign from the police department if his Sabbath accommodation was not met. There was discussion regarding a transfer to another squad, however, this request was denied. The explanation given to Beadle was that if his request for a specific day off was granted, the Department would then have to concern itself with accommodating similar requests made by others. At a meeting in Chief McLain's office on June 21 or 22, the Chief pointed his finger in Beadle's direction and said "you will work your shift."

Beadle met with Major Pegram on June 24, 1988 at which he submitted his letter of resignation. The letter stated:

I hereby submit my resignation from the Tampa Police Department as a police officer, effective at the end of my tour of duties Friday, June 24, 1988, for the following reasons:

I am a member of the Seventh-Day Adventist Church. The 7th day is celebrated as a religious holiday, so taught by the Bible in both the old and new Testament. As a member, I am required to abstain [sic] from routine work day activities, with some exceptions.

All this, I personally communicated to the Department (TPD) before I was hired. Upon being promoted to police officer, I observed that the rotation of my day's-off was not in agreement with my request, that one of my day's-off be Saturdays for the reason aforementioned.

I immediately took my request through the appropriate chain of command. I was told that my request will not be considered.

In view of the intransigent position taken by the Department I see no alternative but to submit my resignation. This I have done with great distress, since it was my hope to serve my City prudently.

Respectfully submitted, Aston A. Beadle.

At this meeting, Major Pegram presented Beadle with a waiver and release concerning Beadle's financial obligations for the cost of his training. This release provided that in exchange for the City's release of Beadle from his financial obligations for the cost of his training, Beadle agreed not to sue the City for any matter relating to his employment. The waiver and release states:

I, Aston Beadle, do hereby resign my employment with the City of Tampa Police Department. By signing this document, I represent to the City of Tampa and to my superiors at the police department that I am submitting this resignation freely and voluntarily, without any coercion or duress to do so.

I further acknowledge my financial obligation to the City of Tampa for reimbursement of those amounts spent by the City of Tampa on my training. However, I have been informed that the City will forego the collection of those monies in exchange for my promise not to sue or press any claim for any matter involving or related to my employment with the City of Tampa. By signing this document, I hereby waive and completely release the City of Tampa, the City of Tampa Police Department, and all officials, officers, employees, and agents of the City of Tampa from any and all liability under any federal or state law or local ordinance relating to employment, including but not limited to laws relating to labor organizations, civil service, collective bargaining (including the collective bargaining agreement in existence between the City of Tampa and the (PBA), and all laws relating to employment discrimination including but not limited to Title VII, the Age Discrimination and Employment Act, the Rehabilitative (sic) Act of 1973 and the Florida Human Relations Act.

I have signed this paper freely and voluntarily on this 24th day of June, 1988.

/s/ Aston A. Beadle

At the trial, plaintiff testified that he understood the release to mean that if he signed it, the City could not hold him liable for the training costs and he could not sue the City for, among other things, religious discrimination. He testified that he read the release and felt that signing it was the best thing for him to do at the time.

He also testified that he felt, at the time, that he was under financial obligation to the City. Beadle further testified, however, that he was under severe financial distress as a result of his prior discharge by the Hillsborough County Sheriff's Department; and he was having marital problems at home, partly resulting from his unstable employment situation. Additionally, his car had just been repossessed and he was unable to pay his bills including his house payments. Although a charge of discrimination was pending, he did not have a relationship with an attorney at the time nor did he seek or obtain the advice of an attorney prior to signing the waiver and release. With respect to the waiver and release, the testimony establishes that Beadle had between fifteen and thirty minutes to consider his options.

At the trial, the City established that it had in the past taken action to collect training expenses from several of its former officers.

It was also established at the trial that a possible permanent accommodation would have been to permit Beadle to work at what was known as the "downtown squad". Officers assigned to this squad worked five days a week during the weekdays and the City's commanders had the prerogative of making assignments to this squad. However, assignment to this squad is only available after completion of the sixteen-week training squad. The attractiveness of this squad depends upon the officer's point of view. The advantage is that there is less report writing and violent confrontation. It is also an advantage that an officer assigned to this squad is off on Saturday and Sunday. The disadvantage is that the squad works five days a week. Also, squad officers are assigned to do background investigations for hiring. These positions are basically Monday to Friday jobs.

At the trial, City command officers testified that assignments to a particular training squad without rotation

is detrimental to the consistency of the training and results in lack of proper training. According to the City, it is extremely important to the continuity of the training that the police officers be trained under different field training officers.

After his termination, Beadle timely filed a charge of discrimination with the Equal Employment Opportunity Commission, received his right to sue letter, and initiated this action.

CONCLUSIONS OF LAW

1. Waiver and Release

As a preliminary threshold issue, the Court must consider whether the release that Beadle signed, in which he agreed to waive his right to sue the City in return for a release from his purported financial obligation for the cost of his training, was valid under the applicable law.

Employees may validly waive their Title VII rights in private settlements with their employers if their consent to a release is both knowing and voluntary. *Alexander v. Gardner-Denver Company*, 415 U.S. 36, 52, 94 S.Ct. 1011, 1021, 39 L.Ed.2d 147 (1974). Although the Circuits are split as to the appropriate source of law to be used in determining the validity of a waiver, the authority most prominently cited, and the leading authority is *Bormann v. A T & T Communications, Inc.*, 875 F.2d 399 (2d Cir. 1989). This case sets forth a "totality of the circumstances" test to assess the validity of a particular release. The Court in *Bormann* indicates that the following factors must be considered: (1) the plaintiff's education and business experience, (2) the amount of time the plaintiff had possession of or access to the agreement before signing it, (3) the role of the plaintiff in deciding the terms of the agreement, (4) the clarity of the agreement, (5) whether the plaintiff was represented by counsel or consulted with an attorney, and (6) whether

the consideration given in exchange for the waiver exceeds employee benefits to which the employee was already entitled by contract or law. *Id.* at 403, (quoting *EEOC v. American Express Publishing Corporation*, 681 F.Supp. 216, 219 (S.D.N.Y. 1988)). The fifth factor is modified to include "whether an employer encourages or discourages the employee to consult an attorney and whether the employee had a fair opportunity to do so." *Bormann*, at 403. (citation omitted). *Bormann* additionally states that this list of factors is not exhaustive, but provides guidance for determining whether a particular release is knowing and voluntary.

The City argues that the release is valid because plaintiff was an educated man, was told that he did not have to sign the release if he did not want to, and that the terms of the release are clear. The City further argues that Beadle thought he was being discriminated against when he signed the release, had filed a charge of discrimination with the EEOC and had spoken with an attorney about a charge of religious discrimination against his former employer the Hillsborough County Sheriff's Office. Because Beadle had access to two separate attorneys and understood the consequences of the release, the City argues that the terms of the release should be enforced.

However, having considered the circumstances in their totality, the Court is convinced that the release was not entered into knowingly and voluntarily under the totality of the circumstances. Beadle had possession of the release for no more than thirty minutes and as few as ten minutes before he signed it. He had absolutely no role whatsoever in negotiating the terms of the release. Although he could possibly have contacted his counsel, and there is no evidence to suggest that he was coerced to sign the release, he was not represented by counsel nor did he exercise his opportunity to consult with an attorney. Although he was not discouraged from consult-

ing with an attorney, the Court is unconvinced that he had a fair opportunity to do so, given the stressful situation he faced. The evidence indicates that Beadle, at the time he executed the waiver, was suffering from severe financial and domestic problems. He was terminated from his prior position with the Hillsborough County Sheriff's Office, he was undergoing marital and domestic problems at home and his car had been repossessed. He was faced with the difficult choice of the surrender of his job or the surrender of his religion.

More importantly, the Court is not convinced that there was an actual financial obligation due from Beadle to the City between the time of his termination (or resignation) and the execution of the waiver. According to the "Binding Contract For Reimbursement Of Hiring and Training Expenses" that Beadle signed at the time of the commencement of his employment, liability for training expenses would have arisen only in the event that he accepted employment with another law enforcement agency within the State of Florida within twenty-four months from the commencement of full-time service as a police officer subsequent to the completion of the field training period. At the time that Beadle signed the waiver of release, he thought that there was an existing financial obligation which he owed to the City. Pegram's conversations with him at the time of his resignation led him to believe that he owed the City money. Additionally, the Court is not convinced that a financial obligation was due to the City **prior to the commencement of full-time service** after completion of the field training program. Further, the release is not mutual in that a representative of the City did not sign it, agreeing to refrain from holding Beadle responsible from any financial obligation. Considering all of these factors in totality, the Court is of the opinion that Beadle did not intelligently and voluntarily sign the release waiving his Title VII rights.

2. The Title VII Claim

The parties stipulated in their pretrial statement that this Court has jurisdiction of this action pursuant to 42 U.S.C. § 2000e-5(f)(3). The parties further agree that at all times pertinent to this action, the City was Beadle's "employer" and that Beadle was an "employee" as those terms are defined in 42 U.S.C. §§ 2000e(b) and 2000e(f), respectively. Additionally, the parties stipulate that Beadle satisfied the administrative prerequisites to maintaining this action.

Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e-2(a)(1), makes it unlawful for an employer to discriminate against an employee or prospective employee on the basis of that individual's "race, color, religion, sex, or national origin." The term "religion" includes "all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he is unable to reasonably accommodate to an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business." 42 U.S.C. § 2000e(j).

To establish a *prima facie* case of religious discrimination, a plaintiff must demonstrate: (1) that he or she had a bona fide belief that compliance with an employment requirement would be contrary to his or her religious belief or practice; (2) that he or she informed the employer about the conflict; and (3) that he or she was discharged or penalized for failing to comply with the conflicting employment requirement. *Brener v. Diagnostic Center Hospital*, 671 F.2d 141, 144 (5th Cir. 1982)¹.

¹ This opinion is a decision of the Fifth Circuit which is accorded only persuasive authority in the Eleventh Circuit. See *Bonner v. City of Prichard, Alabama*, 661 F.2d 1206 (11th Cir. 1981) (*en banc*); *Stein v. Reynolds Securities, Inc.*, 667 F.2d 33, 34 (11th Cir. 1982).

Murphy v. Edge Memorial Hospital, 550 F.Supp. 1185, 1187-88 (M.D. Ala. 1982). The City does not contest the sincerity of Beadle's religious beliefs. Further, the Court finds from the evidence that Beadle's religious beliefs, with respect to Saturday work requirements, conflict with the employment requirements of the City and that Beadle informed the City of the conflict. The Court further finds that based upon the record of facts, Beadle was constructively discharged since he was forced into an involuntary resignation as a result of the inability to comply with his religious beliefs. See *Young v. Southwestern Savings & Loan Association*, 509 F.2d 140 (5th Cir. 1975).²

After a Title VII plaintiff has established a prima facie case, the defendant must show that it offered the plaintiff a reasonable accommodation of his or her religious practices, or that any accommodation of the plaintiff's practices would result in undue hardship to the employer. 42 U.S.C. § 2000e(j). *Murphy v. Edge Memorial Hospital*, *supra*, 550 F.Supp. at 1188.

"The duty to accommodate requires that the employer take affirmative steps to explore and implement alternatives which would satisfy an employee's religious practices without (1) compromising the employment entitlements of other employees or (2) conferring a privilege on the employee the cost of which is more than *de minimis*." *Murphy v. Edge Memorial Hospital*, *supra*, 550 F.Supp. at 1188.

Since a prima facie case is established, the specific issue presently before the Court is whether the City could have reasonably accommodated Beadle's religious needs without incurring undue hardship. To resolve this

² Pursuant to *Bonner v. City of Prichard, Alabama*, *supra*, decisions of the former Fifth Circuit entered prior to the split establishing the Eleventh Circuit are binding in the Eleventh Circuit.

issue, the Court relies upon *TransWorld Airlines, Inc. v. Hardison*, 432 U.S. 63, 97 S.Ct. 2264, 53 L.Ed.2d 113 (1977). In that case, Larry G. Hardison, a follower of the Worldwide Church of God, sued TransWorld Airlines (TWA) and the International Association of Machinists and Aerospace Workers, AFL-CIO (IAM), claiming that TWA violated Title VII by failing to reasonably accommodate his religious beliefs. Hardison, like Beadle, belonged to a religion requiring observance of the Sabbath from sundown Friday to sundown Saturday. TWA discharged him without accommodating his request to have these days off since shift assignments at its Kansas City, Missouri facility were based on a seniority system in accordance with a collective bargaining agreement. Due to Hardison's comparatively low seniority, the union's unwillingness to modify the system on Hardison's behalf, Hardison's religious belief could not meet an accommodation absent payment of overtime to another substitute employee or forcing the supervisor to take Hardison's place. The TWA facility to which Hardison was assigned operated twenty-four hours a day throughout the year.

The Supreme Court found that the evidence established an absence of volunteers to relieve Hardison on Saturdays and to give him Saturdays off, would have deprived another employee of his or her shift preference "at least in part because he did not adhere to a religion that observed the Saturday Sabbath." *TransWorld Airlines, Inc. v. Hardison*, *supra*, 432 U.S. at 81, 97 S.Ct. at 2274. The Court concluded: "Absent a discriminatory purpose", the operation of a neutral scheduling system which was designed to meet the needs of all employees, "cannot be an unlawful employment practice even if the system has some discriminatory consequences." *TransWorld Airlines, Inc. v. Hardison*, *supra*, 432 U.S. at 82, 97 S.Ct. at 2276. The Court found that an employer is not required by Title VII to alter such a neutral scheduling system to meet the religious practices of an employ-

ee, but may satisfy the reasonable accommodation requirement by demonstrating efforts to accommodate an employee within the neutral system. According to the Court in *Hardison*, "[i]t would be anomalous to conclude that by 'reasonable accommodation' Congress meant that an employer must deny the shift and job preference of some employees, as well as deprive them of their contractual rights, in order to accommodate or prefer the religious needs of others, and we conclude that Title VII does not require an employer to go that far." *Trans-World Airlines, Inc. v. Hardison*, *supra*, 432 U.S. at 81, 97 S.Ct. at 2274. The Court evaluates reasonable accommodation in light of the employer's ability to accommodate an employee within the framework of the system established without denying the benefits of the system to other employees or incurring a greater than **de minimis** cost. As stated in *Murphy v. Edge*, *supra*, an accommodation is not required under Title VII when: (1) the accommodation will deprive the benefits of the neutral scheduling system to any other employee, or (2) will require the employer to incur a greater than **de minimis** cost." *Murphy v. Edge Memorial Hospital* 550 F.Supp. at 1189.

As stated in *Williams v. Southern Union Gas Company*, 529 F.2d 483, 489 (10th Cir.), *cert. denied*, 429 U.S. 959, 97 S.Ct. 381, 50 L.Ed.2d 325 (1976), the phrases "reasonably accommodate" and "undue hardship" are relative terms that cannot be given any hard and fast meaning. "Each case necessarily depends upon its own facts and circumstances, and in a sense every case boils down to a determination as to whether the employer has acted reasonably." *United States v. City of Albuquerque*, 545 F.2d 110, 114 (10th Cir.) *cert. denied*, 433 U.S. 909, 97 S.Ct. 2974, 53 L.Ed.2d 1092 (1976).

In the *United States v. City of Albuquerque, Id.*, the religious discrimination issue was faced by a public employer, i.e., the City's Fire Department. In that case,

the Court noted that "the 'business' was that of fire suppression, and such is obviously a matter of great public interest." *Id.* at 114. The interest is "in protecting the lives and property of a dependent citizenry". To that extent, that Court determined that Courts should "go slow in restructuring . . . employment practices." *Id.*

In the present case, Beadle was assigned to an initial training squad which gave him Tuesdays, Wednesdays and Thursdays off but not the days of his Sabbath. Had he been assigned to the other training squad, he would have had his Sabbath days off initially, but since the training squads are rotated, ultimately he would have been required to work on a Sabbath Day. Unlike his prior employment, (Hillsborough County Sheriff's Office), the City did not allow Beadle to swap days off with other employees, relying upon the integrity of its training program which requires exposure to a variety of training officers. Clearly, other than granting him his first Saturday off of his training period, the City made absolutely no accommodations whatsoever to Beadle's religious needs other than the benefits of its neutral rotating shift system. The City contends, however, that because of the particular nature of police work, accommodating an employee outside of the neutral rotating shift system would deprive the benefits of the system to other employees and result in a greater than *de minimis* cost to the City. Although the cases reflect the view that the trial court must evaluate reasonable accommodation and undue hardship in light of the employment context of each case, the Court is unable to find any authority which would require a public health or safety agency to grant such an employee an exception from the customary neutral rotating shift system used by law enforcement agencies in order to accommodate the Sabbath requirements of the officer.

In an action by a FBI agent against the United States Department of Justice claiming religious discrimination

under Title VII due to denial of Sabbath observance requirements, the Seventh Circuit concluded "[c]ompelled, as it is by Title VII, to have one rule for all of the diverse religious beliefs and practices in the United States, the FBI may choose to be stingy with exceptions lest the demand for them overwhelm it." *Ryan v. U.S. Department of Justice*, 950 F.2d 458, 462 (7th Cir.), *cert. denied*, 112 S.Ct. 2309, 119 L.Ed.2d 230 (1991).

Beadle argues that other positions were available in the City of Tampa Police Department, such as what is known as the "downtown squad", assignment to which would accommodate his religious beliefs, but that the City took an "intransigent" position by failing to afford him an assignment to such a position. However, Beadle never gave the system an opportunity or a chance to work for him. He may have been eligible for such an assignment after completion of his training. Deputy Chief Curtis Lane encouraged him to do so but Beadle's conscience would not allow him to do so.

The Court interprets *TransWorld Airlines, Inc. v. Hardison* to provide that Title VII does not require a law enforcement agency of the nature of the City of Tampa Police Department to grant its law enforcement officer a permanent weekly religious accommodation to the exclusion of his or her fellow officers. The City of Tampa Police Department is a 24-hour a day, seven-day a week, 365-day a year agency with public health, safety and welfare responsibilities. The Court is unable to conclude that the accommodation of a transfer of Beadle to another training shift would have deprived another police trainee of the benefits of the neutral scheduling system since the evidence did not establish that a swap was necessary, at least at the training stage. However, the Court concludes that requiring the Department to grant shift exceptions to Beadle would be to incur a greater than *de minimis* cost because of the public health, safety and welfare considerations associated with

police work. Title VII does not require the employer to assure the individual the opportunity to observe religious practices at all costs. *See Ansonia Board of Education v. Philbrook*, 479 U.S. 60, 107 S.Ct. 367, 93 L.Ed.2d 305 (1986). In the present case, the City met its obligation under Title VII when it offered the neutral shift rotating system as a reasonable accommodation to Beadle.

Accordingly, the Court directs the Clerk to enter judgment for the defendant.

ORDERED on this 1st day of October, 1993.

/s/ Charles R. Wilson

CHARLES R. WILSON

UNITED STATES MAGISTRATE JUDGE

Copies furnished to:
Counsel of Record

APPENDIX C

**UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA**

Case Number 91-1316-Civ-T-17(A)

ASTON A. BEADLE,

V.

**CITY OF TAMPA, FLORIDA,
a Florida municipal corporation,
THE CITY OF TAMPA, FLORIDA
POLICE DEPARTMENT**

JUDGMENT IN A CIVIL CASE

[Filed Oct. 4, 1993, 9:08 am, U.S. District Court, Middle District of Florida, Tampa Division (Clerk's stamp(RJH))]

☐ **Jury Verdict.** This action came before the Court for a trial by jury. The issues have been tried and the jury has rendered its verdict.

☒ **Decision by Court.** This action came before the Court. [A]nd a decision has been rendered.

IT IS ORDERED AND ADJUDGED that judgment is entered on behalf of defendant, The City of Tampa, Florida and The City of Tampa, Florida Police Department.

October 1, 1993
Date

DAVID L. EDWARDS
Clerk
/s/ Rebecca J. Hockett
(By) Deputy Clerk

APPENDIX D

**EQUAL EMPLOYMENT OPPORTUNITY COMMISSION
NEWARK AREA OFFICE
[SEAL] 60 PARK PLACE
NEWARK, NJ 07102**

Charge Number 15189001C

Aston A. Beadle
15 Tentmill Lane
Pikesville, MD 21208

Charging Party

v.

City of Tampa Police Department
1710 Tampa Street
Tampa, Florida 33608

Respondent

DETERMINATION

Under the authority vested in me by the Procedural Regulations of the Equal Employment Opportunity Commission (EEOC), I issue on behalf of the EEOC the following determination as to the merits of the subject charge filed under Title VII of the Civil Rights Act of 1964, as amended (Title VII).

The timeliness and all other jurisdictional requirements have been met. Charging Party alleged that he was discriminated against because of his religion/Seventh Day Adventist in that he was denied religious accommodation and constructively discharged.

The evidence reveals that Charging Party was hired by Respondent on February 22, 1988, as a Police Recruit. On June 12, 1988, Charging Party was assigned as a Police Officer. Effective June 24, 1988, Charging Party constructively resigned from his position.

Charging Party is a Seventh Day Adventist. Charging Party's Sabbath begins on Friday before sundown and lasts until after sundown on Saturday.

The evidence reveals that as a Police Officer, Charging Party had rotating days off. Periodically, Charging Party would be off to observe his Sabbath.

Respondent maintains that Charging Party could not be accommodated because it would be detrimental to the consistency of his training. Charging Party was attending a Field Training and Evaluation Program which is a 16 week program designed to observe and evaluate the probationary officer's training. Charging Party's work schedule required him to work four (4) days and have three (3) days off.

The scheduled work days and off days are not always consecutive. Therefore, Charging Party's training would not be consistent. By allowing Charging Party to work on one (1) of his offdays, so that he could observe his Sabbath, would not have created an undue hardship for Respondent. Respondent had a duty to reasonably accommodate Charging Party and it failed to do so.

Based on this analysis, I have determined that the evidence obtained during the investigation establishes a violation of the statute(s) as follows:

That the Charging Party was denied religious accommodation because of his religion/Seventh Day Adventist.

I have also determined that the evidence obtained during the investigation establishes a violation as to the following:

The evidence substantiates that because of the alleged discriminatory treatment, Charging Party's working conditions became sufficiently intolerable that a reasonable person in Charging Party's position would have resigned.

Based on this analysis I have determined that the evidence establishes a violation of Title VII.

The EEOC now invites the parties to join with it in a collective effort toward a just resolution of the matter pursuant to Section 706(b) of Title VII. A representative of the Commission will contact both parties shortly to initiate the conciliation process.

March 30, 1990
Date

On behalf of the Commission,
/s/ Corrado Gigante
Corrado Gigante
Area Director

APPENDIX E

PART 1605—GUIDELINES ON DISCRIMINATION BECAUSE OF RELIGION

Sec.

1605.1 "Religious" nature of a practice or belief.

1605.2 Reasonable accommodation without undue hardship as required by Section 701(j) of Title VII of the Civil Rights Act of 1964.

1605.3 Selection practices.

Appendix A to §§ 1605.2 and 1065.3 Background information.

Authority: Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. 2000e et seq.

§ 1605.1 "Religious" nature of a practice or belief.

In most cases whether or not a practice or belief is religious is not at issue. However, in those cases in which the issue does exist, the Commission will define religious practices to include moral or ethical beliefs as to what is right and wrong which are sincerely held with the strength of traditional religious views. This standard was developed in *United States v. Seeger*, 380 U.S. 163 (1965) and *Welsh v. United States*, 398 U.S. 333 (1970). The Commission has consistently applied this standard in its decisions.¹ The fact that no religious group espouses such beliefs or the fact that the religious group to which the individual professes to belong may not accept such belief will not determine whether the belief is a religious belief of the employee or prospective employee. The phrase "religious practice" as used in these Guidelines includes both religious observances and practices, as stated in Section 701(j), 42 U.S.C. 2000e(j).

¹ See CD76-104 (1976), CCH P 6500; CD 71-2620 (1971), CCH P 6283; CD 71-779 (1970), CCH P 6180.

§ 1605.2 Reasonable accommodation without undue hardship as required by Section 701(j) of Title VII of the Civil Rights Act of 1964.

(a) *Purpose of this section.*

This section clarifies the obligation imposed by Title VII of the Civil Rights Act of 1964, as amended, (sections 701(j), 703 and 717) to accommodate the religious practices of employees and prospective employees. This section does not address other obligations under Title VII not to discriminate on grounds of religion, nor other provisions of Title VII. This section is not intended to limit any additional obligations to accommodate religious practices which may exist pursuant to constitutional, or other statutory provisions; neither is it intended to provide guidance for statutes which require accommodation on bases other than religion such as § 503 of the Rehabilitation Act of 1973. The legal principles which have been developed with respect to discrimination prohibited by Title VII on the bases of race, color, sex, and national origin also apply to religious discrimination in all circumstances other than where an accommodation is required.

(b) *Duty to accommodate.*

(1) Section 701(j) makes it an unlawful employment practice under § 703(a)(1) for an employer to fail to reasonably accommodate the religious practices of an employee or prospective employee, unless the employer demonstrates that accommodation would result in undue hardship on the conduct of its business.²

(2) Section 701(j) in conjunction with § 703(c), imposes an obligation on a labor organization to reasonably accommodate the religious practices of an employee or prospective employee, unless the labor organization demonstrates that accommodation would result in undue hardship.

² See *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 74 (1977).

(3) Section 1605.2 is primarily directed to obligations of employers or labor organizations, which are the entities covered by Title VII that will most often be required to make an accommodation. However, the principles of Section 1605.2 also apply when an accommodation can be required of other entities covered by Title VII, such as employment agencies (§ 703(b)) or joint labor-management committees controlling apprenticeship or other training or retraining (§ 703(d)). (See, for example, § 1605.3(a) "Scheduling of Tests or Other Selection Procedures.")

(c) *Reasonable Accommodation.*

(1) After an employee or prospective employee notifies the employer or labor organization of his or her need for a religious accommodation, the employer or labor organization has an obligation to reasonably accommodate the individual's religious practices. A refusal to accommodate is justified only when an employer or labor organization can demonstrate that an undue hardship would in fact result from each available alternative method of accommodation. A mere assumption that many more people, with the same religious practices as the person being accommodated, may also need accommodation is not evidence of undue hardship.

(2) When there is more than one method of accommodation available which would not cause undue hardship, the Commission will determine whether the accommodation offered is reasonable by examining:

(i) The alternatives for accommodation considered by the employer or labor organization; and

(ii) The alternatives for accommodation, if any, actually offered to the individual requiring accommodation. Some alternatives for accommodating religious practices might disadvantage the individual with respect to his or her employment opportunities such as compensation, terms, conditions, or privileges of employment. Therefore, when there

is more than one means of accommodation which would not cause undue hardship, the employer or labor organization must offer the alternative which least disadvantages the individual with respect to his or her employment opportunities.

(d) *Alternatives for Accommodating Religious Practices.*

(1) Employees and prospective employees most frequently request an accommodation because their religious practices conflict with their work schedules. The following subsections are some means of accommodating the conflict between work schedules and religious practices which the Commission believes that employers and labor organizations should consider as part of the obligation to accommodate and which the Commission will consider in investigating a charge. These are not intended to be all-inclusive. There are often other alternatives which would reasonably accommodate an individual's religious practices when they conflict with a work schedule. There are also employment practices besides work scheduling which may conflict with religious practices and cause an individual to request an accommodation. See, for example, the Commission's finding number (3) from its Hearings on Religious Discrimination, in Appendix A to §§ 1605.2 and 1605.3. The principles expressed in these Guidelines apply as well to such requests for accommodation.

(i) Voluntary Substitutes and "Swaps".

Reasonable accommodation without undue hardship is generally possible where a voluntary substitute with substantially similar qualifications is available. One means of substitution is the voluntary swap. In a number of cases, the securing of a substitute has been left entirely up to the individual seeking the accommodation. The Commission believes that the obligation to accommodate requires that employers and labor organizations facilitate the securing of a voluntary substitute with substantially similar qualifications. Some means of doing this which employers and

labor organizations should consider are: to publicize policies regarding accommodation and voluntary substitution; to promote an atmosphere in which such substitutions are favorably regarded; to provide a central file, bulletin board or other means for matching voluntary substitutes with positions for which substitutes are needed.

(ii) Flexible Scheduling.

One means of providing reasonable accommodation for the religious practices of employees or prospective employees which employers and labor organizations should consider is the creation of a flexible work schedule for individuals requesting accommodation.

The following list is an example of areas in which flexibility might be introduced: flexible arrival and departure times; floating or optional holidays; flexible work breaks; use of lunch time in exchange for early departure; staggered work hours; and permitting an employee to make up time lost due to the observance of religious practices.³

(iii) Lateral Transfer and Change of Job Assignments.

When an employee cannot be accommodated either as to his or her entire job or an assignment within the job, employers and labor organizations should consider whether or not it is possible to change the job assignment or give the employee a lateral transfer.

(2) Payment of Dues to a Labor Organization.

Some collective bargaining agreements include a provision that each employee must join the labor organization or pay the labor organization a sum equivalent to dues. When an employee's religious practices do not permit com-

³ On September 29, 1978, Congress enacted such a provision for the accommodation of Federal employees' religious practices. See Pub. L. 95-390, 5 U.S.C. 5530a, "Compensatory Time Off for Religious Observances."

pliance with such a provision, the labor organization should accommodate the employee by not requiring the employee to join the organization and by permitting him or her to donate a sum equivalent to dues to a charitable organization.

(e) *Undue Hardship.*

(1) Cost.

An employer may assert undue hardship to justify a refusal to accommodate an employee's need to be absent from his or her scheduled duty hours if the employer can demonstrate that the accommodation would require "more than a *de minimis* cost".⁴ The Commission will determine what constitutes "more than a *de minimis* cost" with due regard given to the identifiable cost in relation to the size and operating cost of the employer, and the number of individuals who will in fact need a particular accommodation. In general, the Commission interprets this phrase as it was used in the *Hardison* decision to mean that costs similar to the regular payment of premium wages of substitutes, which was at issue in *Hardison*, would constitute undue hardship. However, the Commission will presume that the infrequent payment of premium wages for a substitute or the payment of premium wages while a more permanent accommodation is being sought are costs which an employer can be required to bear as a means of providing a reasonable accommodation. Further, the Commission will presume that generally, the payment of administrative costs necessary for providing the accommodation will not constitute more than a *de minimis* cost. Administrative costs, for example, include those costs involved in rearranging schedules and recording substitutions for payroll purposes.

(2) Seniority Rights. Undue hardship would also be shown where a variance from a bona fide seniority system is

⁴ *Hardison*, *supra*, 432 U.S. at 84.

necessary in order to accommodate an employee's religious practices when doing so would deny another employee his or her job or shift preference guaranteed by that system. *Hardison, supra*, 432 U.S. at 80. Arrangements for voluntary substitutes and swaps (see paragraph (d)(1)(i) of this section) do not constitute an undue hardship to the extent the arrangements do not violate a bona fide seniority system. Nothing in the Statute or these Guidelines precludes an employer and a union from including arrangements for voluntary substitutes and swaps as part of a collective bargaining agreement.

§ 1605.3 Selection practices.

(a) **Scheduling of Tests or Other Selection Procedures.** When a test or other selection procedure is scheduled at a time when an employee or prospective employee cannot attend because of his or her religious practices, the user of the test should be aware that the principles enunciated in these guidelines apply and that it has an obligation to accommodate such employee or prospective employee unless undue hardship would result.

(b) **Inquiries Which Determine An Applicant's Availability to Work During An Employer's Scheduled Working Hours.**

(1) The duty to accommodate pertains to prospective employees as well as current employees. Consequently, an employer may not permit an applicant's need for a religious accommodation to affect in any way its decision whether to hire the applicant unless it can demonstrate that it cannot reasonably accommodate the applicant's religious practices without undue hardship.

(2) As a result of the oral and written testimony submitted at the Commission's Hearings on Religious Discrimination, discussions with representatives of organizations interested in the issue of religious discrimination, and the comments received from the public on

these Guidelines as proposed, the Commission has concluded that the use of pre-selection inquiries which determine an applicant's availability has an exclusionary effect on the employment opportunities of persons with certain religious practices. The use of such inquiries will, therefore, be considered to violate Title VII unless the employer can show that it:

(i) Did not have an exclusionary effect on its employees or prospective employees needing an accommodation for the same religious practices; or

(ii) Was otherwise justified by business necessity.

Employers who believe they have a legitimate interest in knowing the availability of their applicants prior to selection must consider procedures which would serve this interest and which would have a lesser exclusionary effect on persons whose religious practices need accommodation. An example of such a procedure is for the employer to state the normal work hours for the job and, after making it clear to the applicant that he or she is not required to indicate the need for any absences for religious practices during the scheduled work hours, ask the applicant whether he or she is otherwise available to work those hours. Then, after a position is offered, but before the applicant is hired, the employer can inquire into the need for a religious accommodation and determine, according to the principles of these Guidelines, whether an accommodation is possible. This type of inquiry would provide an employer with information concerning the availability of most of its applicants, while deferring until after a position is offered the identification of the usually small number of applicants who require an accommodation.

(3) The Commission will infer that the need for an accommodation discriminatorily influenced a decision to reject an applicant when: (i) prior to an offer of employment the employer makes an inquiry into an applicant's availability without having a business necessity justification;

and (ii) after the employer has determined the applicant's need for an accommodation, the employer rejects a qualified applicant. The burden is then on the employer to demonstrate that factors other than the need for an accommodation were the reason for rejecting the qualified applicant, or that a reasonable accommodation without undue hardship was not possible.